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American Kratom Association Comment
Office of the Assistant Secretary for Health, Department of Health and Human Services
Docket No. HHS-OASH-2026-0232
Temporary Placement of 7-Hydroxymitragynine Above a Specified Threshold in Schedule I; Request for Information
91 Fed. Reg. 41049; Document No. 2026-13608

The American Kratom Association (AKA) submits this comment in response to the Office of the Assistant Secretary for Health's (OASH) Request for Information seeking public input on the proposed threshold for 7-hydroxymitragynine, known as 7-OH, for purposes of temporary scheduling under the Controlled Substances Act.

OASH specifically requests comment on whether additional data support the proposed or an alternative threshold level, including what concentration or quantity of 7-OH in a product constitutes an imminent hazard to public safety, and whether data support alternative measurement expressions for specifying the threshold necessary to avoid an imminent hazard.

The Appropriate Public Safety Standard

For purposes of OASH's request for information, the AKA recommends consideration of the chemical manipulation processes that produce 7-OH above naturally occurring levels and that also concurrently produce elevated levels of Mitragynine Pseudoindoxyl (MP) above naturally occurring levels. Both substances, present in levels above naturally occurring levels, should be deemed to present an imminent hazard to public safety.

The AKA further recommends that OASH advise the Attorney General that any quantified MP above naturally occurring limits should be treated as the result of chemical manipulation, synthesis, conversion, enhancement, or other processing that falls within the public safety rationale for temporary scheduling.

This approach would ensure that the scheduling action addresses unsafe, addictive, and harmful chemically manipulated 7-OH and MP related opioid products while avoiding the unintended scheduling of natural kratom leaf products or properly manufactured kratom products containing only trace, incidental, or analytically detectable levels of naturally occurring 7-OH or MP.

The AKA supports the proposed threshold-based approach for 7-OH and MP because it appropriately distinguishes natural kratom leaf products from enhanced, synthesized, converted, or chemically manipulated 7-OH and/or MP products that pose an imminent hazard to public safety.

That framework is scientifically and legally important because it targets products that present the real public safety threat: chemically manipulated 7-OH or MP opioid products, not natural kratom leaf products containing only trace or naturally associated levels.

The 7-OH Threshold Should Be Preserved and Applied to Products Reflecting Chemical Manipulation

The AKA supports OASH's focus on a threshold for 7-OH because a threshold is necessary to distinguish incidental or trace occurrence from enhanced concentrations associated with commercial manipulation.

However, 7-OH and MP can occur in trace amounts in the kratom plant and the public safety problem addressed by the DEA Notice is not trace occurrences. The problem is the deliberate manufacture, conversion, concentration, enhancement, and commercial sale of 7-OH and MP products in dosage forms and concentrations that are not consistent with natural kratom leaf.

Products containing 7-OH or MP above levels that occur naturally should be treated as presenting the imminent hazard to public safety identified by DEA and HHS. Such levels indicate that the product is not merely natural kratom leaf, but instead has been synthesized, converted, concentrated, chemically manipulated, or otherwise processed to create enhanced 7-OH and MP content.

OASH Should Recommend an Equivalent Threshold for MP to Prevent Evasion and Avoid Unintended Consequences

Although the RFI is focused on the 7-OH threshold, OASH also asks whether data support alternative measurement expressions for specifying the threshold necessary to avoid an imminent hazard to public safety. That question is directly relevant to MP.

MP is a direct byproduct or chemical rearrangement product of 7-OH. Because MP is related to 7-OH and can arise from 7-OH under certain conditions, HHS and the Attorney General should ensure that the temporary scheduling framework does not create either of two errors:

1. It should not allow bad actors to evade the 7-OH threshold by chemically manipulating material into MP or other related substances.
2. It should not unintentionally capture otherwise lawful natural kratom products or legitimate kratom extracts merely because a validated laboratory method detects a trace amount of MP.

Leading scientists have already advised DEA that MP can be detected in some kratom leaf-based products but only in trace amounts, and that a "no tolerance" approach could create unintended consequences for legitimate kratom products.

Specifically, the AKA recommends that MP be treated as presenting an imminent hazard to public safety when it exceeds levels greater than is naturally occurring.

Any presence of MP above that level should be treated as evidence of synthesis, conversion, enhancement, or chemical manipulation of the material. Such a level is not consistent with incidental or trace detection in legitimate kratom products and should be subject to Schedule I control as part of the temporary scheduling action aimed at dangerous 7-OH-related substances.

A Parallel MP Threshold Would Strengthen the 7-OH Scheduling Framework

A parallel threshold for MP would improve the proposed temporary scheduling framework in three ways.

1. It would prevent evasion. If 7-OH is controlled above a threshold but MP is subject to a no-tolerance standard or is not clearly addressed through a comparable threshold, enforcement could become either under-inclusive or overbroad. Bad actors could manipulate 7-OH-related chemistry in ways that undermine the public safety purpose of the temporary scheduling action.
2. It would preserve the distinction between natural kratom leaf and chemically manipulated opioid products. The federal government has correctly recognized that natural kratom leaf should not be captured merely because trace levels of related alkaloids or transformation products may be analytically detectable. The same principle should apply to MP.
3. It would avoid unnecessary disruption to legitimate kratom products. A trace detection of MP in an otherwise safe product is not the same as the intentional manufacture or marketing of MP at levels designed to produce pharmacologically significant effects. Chemically manipulated MP should be the target for scheduling.

Conclusion

The AKA supports a science-based threshold that removes dangerous enhanced 7-OH and MP products from the marketplace without unintentionally capturing natural kratom leaf.

The 7-OH threshold proposed by DEA is a necessary and appropriate tool for avoiding an imminent hazard to public safety. OASH should preserve that threshold approach and recommend that a comparable threshold be applied to MP because it is a direct byproduct or rearrangement product of 7-OH.

The AKA respectfully requests that OASH provide the Attorney General with the following recommendation:

MP should be subject to a threshold equivalent to the 7-OH threshold, and any presence of MP above that level should be treated as evidence of chemical manipulation and as presenting an imminent hazard to public safety.

Such a recommendation would strengthen the federal response to dangerous 7-OH-related products, prevent evasion by bad actors, and protect natural kratom leaf consumers from unintended consequences.

Respectfully submitted,

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